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art III.

4. Marriage is forbidden within certain degrees of blood. By the law of Mefo _(Lestieux_ xvii,) which, by the act 1567; c. 15. has been adopted by us, fe- comed in bloods and all remote degrees, may all lay fully marry. By recorded blood are much first cu- fist. Marriage in the direct line is forbidden _in infibrions_ a as it is also in the coherent line in the fiscal case where one of the parties in _is too_, _parents to the other, as grand-uncle, great grand-uncles, &c with re- fect to be grand dressing. See. The fans degrees are prohibited in condignants, are prohibited in af- finity; which is the tie arising from marriage, betwixt one of the married pair, and the blood relations of the other. Marriage also, where other of the parties are naturally unfit for generation, or funds already mar- rich but a third person, i.i (fójé per null).

5. To prevent bigany and nectitious marriages, the church has introduced production of banks which is the ceremony of publishing the names and obligations of their who intend to intermany in the churches where the brilde and bridgeroom edides, after the congregation is afforded for divine ferries; that all parties who know any collection on the marriage may offer its. When the order of the church is the foresee the marriage is called equalers, when otherwise, clandligne. Marriage is valid when entered into in either of them ways; but when clandeline, there are certain penalties imposed upon the parties as well as the celebrate and winters.

6. By marriage, a factory is created between the married pair, which draws after it a mutual commute nation of their civil interests, in as far as in excellent for maintaining it. As the footey falls only for the joints lives of the fact; therefore they have that have the nature of a perpetuity, which our law flyks _heritable_, are not brought under the partnership or communion of goods as a local efter, or bookear by a yearly interest: it is only movable subjects, or the fruits produced by heritable objects during the marriages, that become common to me and wife.

7. The hufland, as the head of the wife, has the fate right of managing the good in communities, which is called _jus murals_. This night is to holdout, that in bears but little refremble to aright of administering a common object. For the husband can, in virtue thereof, till, or even gift, at his placeins, the whole goods falling under communion; and his creditors may affect them for the payment of his parents duties for that the jus murals carries all the characters of an affigation, by the wife to her husband, of her moveable else. I wanted _life just here the marriages and therefore needs no other condition than. But stronger may convey an offate to a wife, fo as it shall not be falsely on the husband, administration or the hub- hand himself may, in the marriagecontries, economic his _ju murarit_ in all or any part of his wifes moveable effect.

8. From this right are excepted paraphernal goods, which, as the word is understood in our law, compaheute wife wearing apparel, and the ornaments proper to her perfus in such neckars, earring, breath or arm jewels, buckles, etc. There are neither alienable by the hufland, was affected by his children. Things of promotions uile to hufland and wills, as plate, medals, &c. may become paraphernal, by the

hufland's giving them to the wife, at or before mar- ringe; but they are paraphernal only in regard to that hufland, who gave them as fuch, and are eltem- em common movables, if the wife, whole _paraphrma_ as the way were, the afterwards married to a four huf- band; unless he fault in the fame manner appropriate them to later.

9. If the right of the hufland to the wifes moveable Bunders af- efiction, is burdened with the morevable debts contracted feeling the by before marriages, and as the right is universal, by marritis. So alls in his burdens; for the reason to how movable debts, though they should far exceed her movieable effects. Yet the hufland is considered as the true doctor in his wifes debts. In all all persons for payments, file is the proper defender; the hufland is only cited for his interest, that is, as crime to bear, and administrative of the footing goods. As long therefore as the marriage is dilofened, and the footy goods thereby (after a division, the hufland is no further concerned), the fines belonging to his deceased, wife; and consequently is no longer liable to pay her debts, which much life recovered from her representatives, or her female relate.

10. This obligation upon the hufland is, however, perpetuated against him [1.] Where his proper dissate tended a red or personal, has been affected, during the marriages paid and by complete legal diligence in which cafe, the huf- husband, bund mulls, by the common rule of law, relieve his property from the number with which it lands charged; and the unconditional gace against his person is not influence to perpetuate the religious; nor even consulate diligence against his class. (2.) The hufand contains liable, even after the wifes death, no fo far as he is because we profited by her class : Still, however, the law does one consider a hufland who has got but a moderate teacher with the wife as _lucrative_ by the marriage; it is the excess only which it considers as lucrons, and that must be eliminated by the quality of the parties and their own condition of lifeAs he was at my time the proper debate in his wifes moveable there, therefore, though he should be lucratas, he is after the difoloton, only liable for them _fufuldurie_, i. e. if her now feature alleats is not sufficient to pay them off.

11. Where the wife is deborn in that fort of debts, while if it had been due to the trouble, excelled the _juu mariis, e.g._ in bonds bearing intellect, which, as we fault afterward fee (claims, for contain particulars as the results of the hufland and wife, postwithstanding of the enactment of the flatature 1661, which renders them movement in certain other reflects, like hufland is liable only for the bypassing intents, and chule that may grow upon the debt during the marriages; because the obligation for her debts must be communicated to the intent it, has in its class. Is the hufland alone who is liable in personal diligence for his wifes debts, while the marriages lobbifies the wife, who as the greater debtor, is free from all political execution upon them while file is _volite vivo_.

12. The hufland the marriages becomes the perp. The fifth tul curator of the wife. From this right it arises, and is the title "must endure" eug.

Matched Wikipedia Article

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Law of Scotland.

4. Marriage is forbidden within certain degrees of blood. By the law of Moſes (*Leviticus* xviii.), which, by the act 1567. c. 15. has been adopted by us, ſeconds in blood, and all remoter degrees, may all lawfully marry. By ſeconds in blood are meant firſt couſins. Marriage in the direct line is forbidden *in infinitum*; as it is alſo in the collateral line in the ſpecial caſe where one of the parties is *loco parentis* to the other, as grand-uncle, great grand-uncle, &c. with reſpect to his grand niece, &c. The ſame degrees that are prohibited in conſanguinity, are prohibited in affinity: which is the tie ariſing from marriage, betwixt one of the married pair, and the blood relations of the other. Marriage alſo, where either of the parties is naturally unfit for generation, or ſtands already married to a third perſon, is *ipſo jure* null.

5. To prevent bigamy and inceſtuous marriages, the church has introduced proclamation of banns; which is the ceremony of publiſhing the names and deſignations of thoſe who intend to intermarry, in the churches where the bride and bridegroom reſide, after the congregation is aſſembled for divine ſervice; that all perſons who know any objection to the marriage may offer it. When the order of the church is obſerved, the marriage is called *regular*; when otherwiſe, *clandeſtine*. Marriage is valid when entered into in either of theſe ways; but when clandeſtine, there are certain penalties impoſed upon the parties as well as the celebrator and witneſſes.

6. By marriage, a ſociety is created between the married pair, which draws after it a mutual communication of their civil intereſts, in as far as is neceſſary for maintaining it. As the ſociety laſts only for the joint lives of the *ſocii*; therefore rights that have the nature of a perpetuity, which our law ſtyles *heritable*, are not brought under the partnerſhip or communion of goods; as a land-eſtate, or bonds bearing a yearly intereſt: it is only moveable ſubjects, or the fruits produced by heritable ſubjects during the marriage, that become common to man and wife.

7. The huſband, as the head of the wife, has the ſole right of managing the goods in communion, which is called *jus mariti*. This right is ſo abſolute, that it bears but little reſemblance to a right of adminiſtering a common ſubject. For the huſband can, in virtue thereof, ſell, or even gift, at his pleaſure, the whole goods falling under communion; and his creditors may affect them for the payment of his proper debts: ſo that the *jus mariti* carries all the characters of an aſſignation, by the wife to her huſband, of her moveable eſtate. It ariſes *ipſo jure* from the marriage; and therefore needs no other conſtitution. But a ſtranger may convey an eſtate to a wife, ſo as it ſhall not be ſubject to the huſband's adminiſtration; or the huſband himſelf may, in the marriage-contract, renounce his *jus mariti* in all or any part of his wife's moveable eſtate.

8. From this right are excepted paraphernal goods, which, as the word is underſtood in our law, comprehends the wife's wearing apparel, and the ornaments proper to her perſon; as necklaces, ear-rings, breaſt or arm jewels, buckles, &c. Theſe are neither alienable by the huſband, nor affectable by his creditors. Things of promiſcuous uſe to huſband and wife, as plate, medals, &c. may become paraphernal, by the huſband's giving them to the wife, at or before marriage; but they are paraphernal only in regard to that huſband who gave them as ſuch, and are eſteemed common moveables, if the wife, whoſe *paraphernalia* they were, be afterwards married to a ſecond huſband; unleſs he ſhall in the ſame manner appropriate them to her.

Burdens affecting the *jus mariti*.

9. The right of the huſband to the wife's moveable eſtate, is burdened with the moveable debts contracted by her before marriage: and as his right is univerſal, ſo alſo is his burden; for it reaches to her whole moveable debts, though they ſhould far exceed her moveable eſtate. Yet the huſband is not conſidered as the true debtor in his wife's debts. In all actions for payment, ſhe is the proper defender: the huſband is only cited for his intereſt, that is, as curator to her, and adminiſtrator of the ſociety-goods. As ſoon therefore as the marriage is diſſolved, and the ſociety goods thereby ſuffer a diviſion, the huſband is no farther concerned in the ſhare belonging to his deceaſed wife; and conſequently is no longer liable to pay her debts, which muſt be recovered from her repreſentatives, or her ſeparate eſtate.

How extended as to the huſband.

10. This obligation upon the huſband is, however, perpetuated againſt him (1.) Where his proper eſtate, real or perſonal, has been affected, during the marriage, by complete legal diligence; in which caſe, the huſband muſt, by the common rules of law, relieve his property from the burden with which it ſtands charged: but the utmoſt diligence againſt his perſon is not ſufficient to perpetuate the obligation; nor even incomplete diligence againſt his eſtate. (2.) The huſband continues liable, even after the wife's death, in ſo far as he is *lucratus* or profited by her eſtate: Still, however, the law does not conſider a huſband who has got but a moderate tocher with the wife as *lucratus* by the marriage; it is the exceſs only which it conſiders as *lucrum*, and that muſt be eſtimated by the quality of the parties and their condition of life.—As he was at no time the proper debtor in his wife's moveable debts; therefore, though he ſhould be *lucratus*, he is, after the diſſolution, only liable for them *ſubſidiarie*, i. e. if her own ſeparate eſtate is not ſufficient to pay them off.

11. Where the wife is debtor in that ſort of debt, which, if it had been due to her, would have excluded the *jus mariti*, *e. g.* in bonds bearing intereſt, which, as we ſhall afterwards ſee (clxiii. 4.), continues heritable as to the rights of huſband and wife, notwithſtanding of the enactment of the ſtatute 1661, which renders them moveable in certain other reſpects, the huſband is liable only for the bygone intereſts, and thoſe that may grow upon the debt during the marriage; becauſe his obligation for her debts muſt be commenſurated to the intereſt he has in her eſtate. It is the huſband alone who is liable in perſonal diligence for his wife's debts, while the marriage ſubſiſts: the wife, who is the proper debtor, is free from all perſonal execution upon them while ſhe is *veſtita viro*.

The huſband is the wife's curator.

12. The huſband by marriage becomes the perpetual curator of the wife. From this right it ariſes, 1. That no ſuit can proceed againſt the wife till the huſband be cited for his intereſt. 2. All deeds, done by a wife without the huſband's conſent, are null; neither can ſhe ſue in any action without the huſband's con-

Figure 1: *
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